

Line 3

Case Name: *Miriam Ben Abdallah, M.D. v. Stephen W. Fackler, et al.*

Case No.: 24CV439631

See Order above (with four Rulings).

Line 4

Case Name: *First Technology Federal Credit Union v. Thien Nguyen, et al.*

Case No.: 26CV484135

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff First Technology Federal Credit Union (“Plaintiff”) moves that the truth of all matters specified in the Requests for Admissions, Set One, be deemed admitted by Defendant Thien Nguyen (“Defendant”) under Code of Civil Procedure Sections 2023.010 *et seq.* and 2031.010 *et seq.* Notice of Motion (the “Motion”) at 1:25-2:2 (filed: May 26, 2026). Plaintiff also moves for a monetary sanction against Defendant in the amount of \$1,792.50 to compensate Plaintiff for its attorneys’ fees and costs for this Motion. *Id.* at 2:2-4.

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admission, Set One, on Defendant on March 17, 2026. Declaration of attorney Melody G. Anderson In Support of Motion (“Anderson Decl.”) at ¶ 2.

Defendant never responded to the Requests for Admission, Set One, Anderson Decl. at ¶¶ 3-6, in spite of Defendant’s obligation to respond to them under Code of Civil Procedure section 2033.240.

Under Code of Civil Procedure section 2033.280, because Defendant failed to respond to the Requests for Admission, Set One, Plaintiff moves for an Order deeming admitted by Defendant the truth of each matter in the Requests for Admission, Set One. C.C.P. 2033.280(b).

The Motion is well supported by the law, well supported by the facts set forth in the Anderson Declaration, and reasonable in all respects.

Defendant does not argue otherwise. Indeed, Defendant has not opposed this Motion at all, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).).

Regarding the monetary sanction sought by Plaintiff here, the Court has authority and discretion under Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Defendant: “The court may impose a monetary sanction ordering that